No. 98-376

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IN THE
Supreme Court of the United States
OCTOBER TERM, 1998

WARNER JACKSON, *et al.*,
Petitioners,
v.
JOHN T. BENSON, *et al.*,
Respondents.

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, *et al.*,
Petitioners,
v.
JOHN T. BENSON, *et al.*,
Respondents.

NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE, *et al.*,
Petitioners,
v.
JOHN T. BENSON,
Respondent.

On Petition for a Writ of Certiorari to the Supreme Court of Wisconsin

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SUPPLEMENTAL BRIEF IN SUPPORT OF PETITION FOR A WRIT OF CERTIORARI

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SUPPLEMENTAL BRIEF IN SUPPORT OF PETITION FOR A WRIT OF CERTIORARI

Petitioners Warner Jackson *et al.* submit this Supplemental Brief to call to the Court's attention an Order of the Wisconsin Supreme Court issued in this matter on the

day after the Petition for Certiorari was filed, to explain why they believe this Court's jurisdiction to grant the August 31 Petition for Certiorari to be unaffected by that Order, and to ask this Court, should it deem such action appropriate in order to avoid a potential jurisdictional issue, to treat the Petition for Certiorari as if filed on the date of entry of the Wisconsin court's Order, rather than the day before.

BACKGROUND

The Petition for Certiorari asks this Court to review the judgment of the Supreme Court of Wisconsin, entered on June 10, 1998, which upheld the constitutionality of the Amended Milwaukee Parental Choice Program ("Amended MPCP").

Sixteen days after judgment was entered, on June 26, one of the prevailing parties, intervening defendants Parents for School Choice *et al.* ("PSC"), filed a document styled "Motion for Clarification" (attached hereto as Appendix A), in which PSC asked the court to clarify that its June 10 judgment allowed certain schoolchildren to participate in the Amended MPCP. PSC stated its belief that the eligibility of the children in question had already been established by the June 10 judgment, but requested the "clarification" because the state Department of Public Instruction had taken a different position. The issue on which clarification was sought is a purely state-law matter, related to a question briefly discussed by the Wisconsin court at the end of its opinion, *see* Appendix to Petition for Certiorari 56a-57a. It has no bearing on the federal constitutional question that is presented in this Court.

Concerned that an amendment by the Wisconsin court of its June 10 judgment in response to the Motion for Clarification might conceivably create a question about the finality of the June 10 judgment, petitioners delayed filing their Petition for Certiorari in the hope that the Wisconsin Supreme Court would dispose of the motion

before the time to petition for certiorari expired on September 8, thus permitting the filing of a Petition unclouded by any even arguable jurisdictional question. When by late August the Wisconsin court still had not acted, petitioners prepared to file an application for extension of time for their Petition for Certiorari, based on the pendency before the Wisconsin court of the Motion for Clarification.

The filing of such an application was not necessary, however. The beginning of the new school year in Milwaukee rendered the issue raised by the Motion for Clarification largely moot. Accordingly, on August 27 PSC withdrew its motion by filing a document styled "Withdrawal of Motion for Clarification," which is attached hereto as Appendix B.

On the same day, counsel for petitioners verified with the office of the Clerk of the Wisconsin Supreme Court that the "Withdrawal of Motion for Clarification" had indeed been filed. Counsel was further assured by the deputy clerk that the court would not issue any order pertaining to the withdrawal of the motion, but rather would simply return the record to the trial court. *See* Affidavit of Jeffrey J. Kassel (attached as Appendix E), ¶ 4. Petitioners therefore filed their Petition for Certiorari on Monday, August 31. The Petition was docketed the same day.

The next day, September 1, the Wisconsin Supreme Court issued an Order, attached hereto as Appendix C, in which it "granted" what it characterized as a "Motion to Withdraw the Motion for Clarification." More important for present purposes, in the course of its Order the court stated that it had "construed" that motion "as a Motion for Reconsideration to Clarify the Opinion." App. SA-11.

Motions for reconsideration under Wisconsin Supreme Court practice are governed by Wis. Stat. § 809.64, which provides that "[a] party may seek reconsideration of the judgment or opinion of the supreme court by filing a

motion under § 809.14 for reconsideration within 20 days of the filing of the decision of the supreme court." While PSC's Motion for Clarification had been filed within the 20-day window for motions for reconsideration, it was not styled as a Motion for Reconsideration, and it neither relied upon nor made any reference to § 809.64.[1]

On September 3, the Wisconsin Supreme Court issued its Remittitur (attached hereto as Appendix D), in which it returned the record to the trial court. The Remittitur cited only the court's "opinion filed on June 10, 1998," and made no reference to any subsequent proceedings.

ARGUMENT

While petitioners believe it is their obligation to bring these developments to the attention of this Court, they submit that this Court's jurisdiction to review the judgment of June 10 pursuant to the August 31 Petition for Certiorari is unaffected by the Wisconsin Supreme Court's Order of September 1, notwithstanding its characterization of the Motion for Clarification as a "Motion for Reconsideration."

1. The problem, to the extent there is one, arises from this Court's longstanding practice of treating "[a] timely petition for rehearing . . . [as] operat[ing] to suspend the finality of the . . . [lower] court's judgment, pending the court's further determination whether the judgment should be modified so as to alter its adjudication of the rights of the parties." *Missouri v. Jenkins*, 495 U.S. 33, 46 (1990) (quoting *Department of Banking v. Pink*, 317 U.S. 264, 266 (1942)). Thus, "while the petition for rehearing is pending, there is no 'judgment' to be reviewed." *Id.* Under the most extreme view of things, PSC's Motion for Clarification—which the Wisconsin Supreme Court on September 1 announced it had "con-

[1] PSC's Motion for Clarification cited only Wis. Stat. § 809.14, which is the generic rule governing motions practice in the Wisconsin appellate courts.

strued" as a Motion for Reconsideration (the Wisconsin equivalent of a motion for rehearing under federal practice)—was still "pending" (notwithstanding its "withdrawal" by its proponent on August 27) until the Wisconsin court on September 1 "granted" what it described as a motion to withdraw it, and thus there was "no 'judgment' to be reviewed" when the Petition for Certiorari was filed on August 31. That view of the impact of the September 1 Order on this Court's jurisdiction cannot be correct.

It is, of course, understandable that this Court will decline to entertain a petition for certiorari during the pendency of a motion for rehearing, *see, e.g., Craig v. United States,* 298 U.S. 637 (1936) (mem.) (dismissing petition as "premature," without prejudice to its renewal upon disposition of the motion for rehearing), and it is equally apparent why, as this Court's Rule 13(3) provides, the time to petition for certiorari is treated as running from the disposition of a timely motion for rehearing. But it does not follow that where, as here, this Court has before it a petition to review a judgment that is unquestionably final—and which, indeed, appeared to be final on the basis of everything in the record at the time the Petition for Certiorari was filed—its jurisdiction to review that judgment is negated by an order of the lower court issued *after* the filing of the Petition for Certiorari, which in fact *confirmed* the finality of the judgment sought to be reviewed.

In the first place, this Court's cases discussing the suspensive effect of a rehearing petition on the finality of the lower court judgment uniformly address the question of whether the time period for the filing of a petition for certiorari should be *extended.* Those cases need not be read as holding that the filing of a petition for rehearing necessarily and invariably deprives this Court of jurisdiction to entertain a petition for certiorari that was filed "prematurely" during the pendency of a rehearing petition. That is a question these cases do not address, and at least

under the circumstances presented here there is no reason this Court cannot review the June 10 final judgment of the Wisconsin Supreme Court, as the Petition for Certiorari asks it to do.

Here, in the first place—unlike the situation this Court faced in *Craig, supra*—there is no petition for rehearing pending at the time the petition for certiorari comes before this Court for decision.[2] Even accepting as determinative the Wisconsin court's characterization of PSC's Motion for Clarification as a "Motion for Reconsideration," that motion has been disposed of, without change in the original judgment, since at least September 1, the day after the Petition for Certiorari was filed. The June 10 final judgment the Petition for Certiorari asks this Court to review is still, without any question, the final judgment of the Wisconsin Supreme Court.

Equally important, the Petition for Certiorari clearly was timely when it was filed on August 31—at least as far as could have been ascertained from the record as it existed on that date. It was only the next day that the Wisconsin Supreme Court announced that it had "construed" PSC's Motion for Clarification as a Motion for Reconsideration.

The pendency of the Motion for Clarification—even assuming it was indeed still pending on August 31, notwithstanding its withdrawal four days previously—in no way called into question the finality of the June 10 judgment. While a timely petition for rehearing suspends the finality of the lower court's judgment during the time it is pending, regardless of its ultimate disposition, the same is not true where a motion merely seeks "clarification" of the judgment without asking the court "to 'reconsider [a] question decided in the case' in order to effect an 'alter-

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[2] In *Craig*, this Court acted on the petition for certiorari on March 31, 1936. The Ninth Circuit did not rule on the pending petition for rehearing until April 20 of the same year. *See* 83 F.2d 450 (9th Cir. 1936).

ation of the rights adjudicated.'" *United States v. Dieter*, 429 U.S. 6, 9 (1976) (quoting *Pink*, 317 U.S. at 266).

Here, PSC merely asked the Wisconsin Supreme Court to clarify what it believed the court's June 10 opinion already had held. *See* App. SA-5. Under such circumstances, the finality of the original judgment, for purposes of the timing of a petition for certiorari, will be affected only if the lower court makes substantive changes in that judgment. *Compare* Robert L. Stern, Eugene Gressman, *et al.*, *Supreme Court Practice* § 6.3 (7th ed. 1993) ("Time Calculation When Rehearing Sought Below"), *with id.*, § 6.4 ("Time Calculation When Judgment Below Is Changed") (citing cases).[3]

What could not have been anticipated when petitioners filed their Petition for Certiorari on August 31 was that the Wisconsin court not only would issue an order in response to PSC's withdrawal of its Motion for Clarification, but that in so doing the court would announce that it had construed that Motion as a motion for reconsideration. In sum, the Petition for Certiorari was indisputably timely when it was filed. To the extent that it now could be said to be premature, it was rendered so only by action of the court below subsequent to its filing.[4]

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[3] Petitioners' initial concern that a petition for certiorari filed before disposition of the Motion for Clarification might be premature was based on the possibility that the Wisconsin court might substantively amend its judgment in response to the Motion—not on the mere pendency of the Motion itself.

[4] While we have not found a reported case that raises precisely these facts, it is not difficult to imagine circumstances under which similar situations could arise. For example, under this Court's Rule 13(3), "[a] suggestion made to a United States court of appeals for a rehearing en banc is not a petition for rehearing within the meaning of this Rule *unless so treated by the United States court of appeals*" (emphasis added). If, after the filing of a petition for certiorari during the pendency of a suggestion for rehearing en banc, the court of appeals were, in disposing of the suggestion, to announce that it had "treated" the suggestion as a petition for rehearing and denied the same, an analogous situation would be

Allowing the Wisconsin Supreme Court's September 1 order retroactively to render the Petition for Certiorari untimely would be particularly inappropriate in light of the fact that the import of that order, as well as that of the Remittitur issued two days later, was *to confirm the finality of the June 10 judgment from which review was sought.* Under these circumstances, in granting the Petition for Certiorari in order to review the June 10 judgment of the Wisconsin Supreme Court, this Court would —both literally and in spirit—be well within the limits to its jurisdiction imposed by 28 U.S.C. § 1257(a), which restricts this Court's review to "[f]inal judgments" of the state courts, and 28 U.S.C. § 2101(c), which requires that review of any such judgment "shall be . . . applied for within ninety days after the entry of such judgment." The June 10 judgment clearly is the Wisconsin Supreme Court's final judgment, and the Petition for Certiorari was filed within 90 days from the entry of that judgment.[5]

2. Should the Court believe it necessary to do so, it may wish to treat the Petition for Certiorari as filed on the day of the Wisconsin Supreme Court's order—Sep-

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presented. While this hypothetical scenario, in which the decision below is from a federal court of appeals rather than a state court, may not raise the same issues of finality as does the instant case, it nonetheless illustrates the paradox that a timely petition for certiorari could be rendered untimely by a subsequent announcement of the lower court that it had "treated" a motion before it as something other than what it appeared on its face to be.

[5] It is worth observing in this regard that the only issue raised by the Motion for Clarification was a state-law issue, the resolution of which could have had no conceivable impact on the federal constitutional issue decided by the Wisconsin Supreme Court and presented for review in the Petition for Certiorari. This case thus falls within the class of cases recognized by this Court, albeit in a slightly different context, "in which the federal issue, finally decided by the highest court in the State, will survive and require decision regardless of the outcome of future state-court proceedings." *Cox Broadcasting Corp. v. Cohn*, 420 U.S. 469, 480 (1975). In such cases, this Court has declined to administer the finality requirement in "a mechanical fashion." *Id.* at 477.

tember 1, 1998—rather than the day before. This Court would be fully justified in so doing, and no party would suffer any conceivable prejudice were it to take that step. September 1 was well within the period for filing a petition to review the June 10 judgment of the Wisconsin Supreme Court. That 90-day period did not expire until September 8, and it is pure happenstance that the Petition actually was filed late on the afternoon of August 31 rather than early the next morning.

This is an important case which fully merits this Court's review. The Court should not allow its jurisdiction to be defeated under the circumstances presented.[6]

CONCLUSION

For the reasons stated above and in the Petition for Certiorari, the Petition should be granted.

Respectfully submitted,

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[6] Should the Court, contrary to what we have argued above, be of the opinion that any petition for certiorari filed prior to September 1 was jurisdictionally premature, and that the Petition cannot be treated as filed on that date, it should then follow its precedent in *Craig*, *supra*, and dismiss the Petition without prejudice to its renewal within the 90-day period that began on September 1. We submit, however, that such a course would elevate form over substance and is not necessary to comply with either the letter or the spirit of the statutes governing this Court's jurisdiction.

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APPENDICES

APPENDIX A

IN THE SUPREME COURT OF WISCONSIN

No. 97-0270

WARNER JACKSON, JENNIFER EVANS, WENDELL HARRIS, THE REVEREND ANDREW KENNEDY, RABBI ISAAC SERROTA, CEIL ANN LIBBER, FATHER THOMAS J. MUELLER, REVEREND JOHN N. GREGG, DIANE BREWER, COLLEEN BEAMAN, MARY MORRIS, PENNY MORSE, KATHLEEN JONES and PHILIP JONES,

Plaintiffs/Respondents,

v.

JOHN T. BENSON,
Superintendent of Public Instruction,
DEPARTMENT OF PUBLIC INSTRUCTION
and JAMES E. DOYLE,

Defendants/Appellants/ Petitioners,

and

MARQUELLE MILLER, CYNTHIA MILLER, ANGELA GRAY, ZACHARY GRAY, SHON RICHARDSON, GEORGE RICHARDSON, LATRISHA HENRY, FAYE HENRY, REIGNE BARRETT, VALERIE BARRETT, CANDICE WILLIAMS, SENTON WILLIAMS, CLINTRAI GILES, SHARON GILES,

Intervenors/Defendants/ Appellants,

PARENTS FOR SCHOOL CHOICE, PILAR GONZALEZ, DINAH COOLEY, JULIE VOGEL, KATE HELSPER, BLONG YANG, GAIL CROCKETT, YOLANDA LASSITER, and JEANINE KNOX,

Intervenors/Defendants/ Appellants/Petitioners.

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, by its President, M. Charles Howard, MICHAEL LANGYEL, DONALD LUCIER, TRACY ADAMS, MILWAUKEE PUBLIC SCHOOLS ADMINISTRATORS AND SUPERVISORS COUNCIL, INC., by its Executive Director, Carl A. Gobel, PEOPLE FOR THE AMERICAN WAY, by its Executive Vice President and Legal Director, Elliot Mincberg, JOHN DREW, SUSAN ENDRESS, RICHARD RILEY, JEANETTE ROBERTSON, VINCENT KNOX, BERTHA ZAMUDIO, JAMES JOHNSON, ROBERT ULLMAN and SALLY F. MILLS,

Plaintiffs/Respondents,

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Intervenors/Defendants/Appellants/Petitioners.

NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE, FELMERS O. CHANEY, LOIS PARKER, on behalf of herself and her minor child, Rashaan Hobbs, DERRICK D. SCOTT, on behalf of himself and his minor children, Deresia C.A. Scott and Desmond L.J. Scott, CONSTANCE J. CHERRY, on behalf of herself and her minor children, Monique J. Branch, Monica S. Branch, and William A. Branch,

Plaintiffs/Respondents,

v.

JOHN T. BENSON,
Superintendent of Public Instruction of Wisconsin,
in his official capacity,

Defendant/Appellant.

On Appeal from the Final Order
of the Dane County Circuit Court
Judge Paul Higginbotham

MOTION FOR CLARIFICATION

Parents for School Choice, Pilar Gonzalez, Dinah Cooley, Julie Vogel, Kate Helsper, Blong Yang, Gail Crockett, Yolanda Lassiter and Jeanine Knox, Intervenors/Defendants/Appellants/Petitioners in the above-referenced case, respectfully move this Court for clarification of its decision dated June 10, 1998, pursuant to Wisconsin Rule of Appellate Procedure 809.14.

In its June 10 decision, this Court made clear that it was aware both that thousands of children who were eligible for full tuition under the program had already enrolled in private schools when it was enjoined and that if they remained in their private schools they would now be ineligible if the injunction is lifted because they are already attending private schools. Stating that "[t]heir

ineligibility is no fault of their own, but instead is solely a consequence of this litigation. Those children certainly are among the intended beneficiaries of this program. To require them to return to MPS for a year to reestablish eligibility would be manifestly inequitable and disruptive to the public schools, to the private schools, and most importantly, to the children themselves," this Court dissolved the injunction and held harmless the intended beneficiary school-children. Specifically, this Court said, "[i]n dissolving the injunction, we therefore remove the disability the injunction placed on schoolchildren, so that with respect to educational status, eligibility under the amended MPCP is determined on the date the injunction was issued." (¶ 113).

On June 25, 1998, the Wisconsin Department of Public Instruction issued a document entitled "Milwaukee Parental School Choice Program Student Application Form 1998-1999 School Year," a copy of which is attached to the affidavit of Daniel M. McKinley that is appended to this motion. *This document excludes from Program eligibility certain children who otherwise became eligible for the Program after the August 25, 1995 entry of the injunction halting portions of the Program.*[1] While excluding these children, who would have been eligible were it not for the injunction, the document defines as eligible those children who were eligible as of the date of

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[1] For example, if due to a change in circumstances after August 24, 1995 a Milwaukee family's income fell below 175% of the property level and a child of that family enrolled in private school, that child is ineligible to participate if he or she were in a grader higher than grade 3 in the 1997-98 school year. To become eligible, he or she must return to the Milwaukee Public Schools for a year.

Similarly, if an otherwise eligible family moved into Milwaukee after August 25, 1995, and enrolled a child in private school, and if that child were in a grade higher than grade 3 in the 1997-98 school year, he or she is ineligible to participate in the program, and must return to the Milwaukee Public Schools for a year to become eligible.

the injunction. According to the private scholarship program that has been providing partial scholarships to students prevented by the injunction from participating in the Program, as many as 250 students could be excluded from the Program based on the document issued by the Department of Public Instruction.[2] These are all students who would have been eligible for the Program had there not been an injunction.

We believe that this Court's language includes those children who would also lose their eligibility because of the injunction but whose eligibility occurred after the injunction was imposed. Like those children eligible on the date the injunction was issued, these later eligible children suffer a disability placed on them by the injunction, solely as a consequence of this litigation. They are among the intended beneficiaries of the program, their ineligibility is no fault of their own, and to require them to reestablish eligibility by returning to MPS for a year would be manifestly inequitable and disruptive to them.

We respectfully ask that the Court clarify that its intent was to remove the disability that the injunction placed on *all* schoolchildren whose eligibility would be adversely affected by the injunction's having been in effect. This small group of later-eligible children is similarly situated in all relevant respects to the group of schoolchildren who are unquestionably covered by your June 10 decision.

Dated this 26 day of June, 1998.

---

[2] See Affidavit of Daniel M. McKinley, Executive Director of Partners Advancing Values in Education, appended to this motion.

Respectfully submitted,

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APPENDIX B

IN THE SUPREME COURT OF WISCONSIN

No. 97-0270

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and

MARQUELLE MILLER, CYNTHIA MILLER, ANGELA GRAY, ZACHARY GRAY, SHON RICHARDSON, GEORGE RICHARDSON, LATRISHA HENRY, FAYE HENRY, REIGNE BARRETT, VALERIE BARRETT, CANDICE WILLIAMS, SENTON WILLIAMS, CLINTRAI GILES, SHARON GILES,

Intervenors/Defendants/Appellants,

PARENTS FOR SCHOOL CHOICE, PILAR GONZALEZ, DINAH COOLEY, JULIE VOGEL, KATE HELSPER, BLONG YANG, GAIL CROCKETT, YOLANDA LASSITER, and JEANINE KNOX,

Intervenors/Defendants/Appellants/Petitioners.

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, by its President, M. Charles Howard, MICHAEL LANGYEL, DONALD LUCIER, TRACY ADAMS, MILWAUKEE PUBLIC SCHOOLS ADMINISTRATORS AND SUPERVISORS COUNCIL, INC., by its Executive Director, Carl A. Gobel, PEOPLE FOR THE AMERICAN WAY, by its Executive Vice President and Legal Director, Elliot Mincberg, JOHN DREW, SUSAN ENDRESS, RICHARD RILEY, JEANETTE ROBERTSON, VINCENT KNOX, BERTHA ZAMUDIO, JAMES JOHNSON, ROBERT ULLMAN and SALLY F. MILLS,

Plaintiffs/Respondents,

v.

JOHN T. BENSON,
Superintendent of Public Instruction,
DEPARTMENT OF PUBLIC INSTRUCTION
and JAMES E. DOYLE,

Defendants/Appellants/ Petitioners,

and

MARQUELLE MILLER, CYNTHIA MILLER, ANGELA GRAY, ZACHARY GRAY, SHON RICHARDSON, GEORGE RICHARDSON, LATRISHA HENRY, FAYE HENRY, REIGNE BARRETT, VALERIE BARRETT, CANDICE WILLIAMS, SENTON WILLIAMS, CLINTRAI GILES, SHARON GILES,

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Intervenors/Defendants/ Appellants/Petitioners.

NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE, FELMERS O. CHANEY, LOIS PARKER, on behalf of herself and her minor child, Rashaan Hobbs, DERRICK D. SCOTT, on behalf of himself and his minor children, Deresia C.A. Scott and Desmond L.J. Scott, CONSTANCE J. CHERRY, on behalf of herself and her minor children, Monique J. Branch, Monica S. Branch, and William A. Branch,

Plaintiffs/Respondents,

v.

JOHN T. BENSON,
Superintendent of Public Instruction of Wisconsin,
in his official capacity,

Defendant/Appellant.

On Appeal from the Final Order
of the Dane County Circuit Court
Judge Paul Higginbotham

WITHDRAWAL OF MOTION FOR CLARIFICATION

On June 26, 1998, Parents for School Choice, Pilar Gonzalez, Dinah Cooley, Julie Vogel, Kate Helsper, Blong Yang, Gail Crockett, Yolanda Lassiter and Jeanine Knox, Intervenors / Defendants / Appellants / Petitioners in the above-referenced case, filed a Motion for Clarification. The motion related to the eligibility status of certain children with respect to the Milwaukee Parental Choice Program.

As the Milwaukee Public Schools commenced the school year on August 26, of necessity the circumstances of the schoolchildren are now settled. Moreover, the pendency of the motion could create uncertainty over the finality of this Court's decision in this case.

For the foregoing reasons, Intervenors/Defendants/Appellants/Petitioners Parents for School Choice, et al., respectfully withdraw the Motion for Clarification.

Dated this 27th day of August, 1998.

Respectfully submitted,

/s/ Kristine A. Edwards

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Petitioners

APPENDIX C

Office of the Clerk
SUPREME COURT
Madison, Wisconsin 53701-1688

September 1, 1998

97-0270

WARNER JACKSON *et al.*

v.

JOHN T. BENSON *et al.*

ORDER

On June 26, 1998, Parents for School Choice et al, by Attorney Clint Bolick, filed a Motion for Clarification of the opinion issued on June 10, 1998, which motion was construed as a Motion for Reconsideration to Clarify the Opinion; on July 8, 1998, Milwaukee Teachers' Education Association, by Attorney Richard Saks, filed a response to the motion; on August 27, 1998, Parents for School Choice et al, by Attorney Clint Bolick, filed a Motion to Withdraw the Motion for Clarification,

The Court having considered the motions and response,

IT IS ORDERED that the Motion to Withdraw the Motion for Reconsideration to Clarify the Opinion is granted.

Ann Walsh Bradley, J. did not participate.

MARILYN L. GRAVES
Clerk of Supreme Court

APPENDIX D

SUPREME COURT
OF WISCONSIN

OFFICE OF THE CLERK
Madison, Wisconsin 53701-1688

Case No. 97-0270
Trial Court Case No. 95 CV 1982, 95 CV 1997, 96 CV 1889

WARNER JACKSON, JENNIFER EVANS, WENDELL HARRIS, THE REVEREND ANDREW KENNEDY, RABBI ISAAC SEROTA, CEIL ANN LIBBER, FATHER THOMAS J. MUELLER, REVEREND JOHN N. GREGG, DIANE BREWER, COLLEEN BEAMAN, MARY MORRIS, PENNY MORSE, KATHLEEN JONES and PHILIP JONES,

Plaintiffs/Respondents,

v.

JOHN T. BENSON,
Superintendent of Public Instruction,
DEPARTMENT OF PUBLIC INSTRUCTION
and JAMES E. DOYLE,

Defendants/Appellants/ Petitioners,

and

MARQUELLE MILLER, CYNTHIA MILLER, ANGELA GRAY, ZACHARY GRAY, SHON RICHARDSON, GEORGE RICHARDSON, LATRISHA HENRY, FAYE HENRY, REIGNE BARRETT, VALERIE BARRETT, CANDICE WILLIAMS, SENTON WILLIAMS, CLINTRAI GILES, SHARON GILES,

Intervenors/Defendants/ Appellants,

PARENTS FOR SCHOOL CHOICE, PILAR GONZALEZ, DINAH COOLEY, JULIE VOGEL, KATE HELSPER, BLONG YANG, GAIL CROCKETT, YOLANDA LASSITER, and JEANINE KNOX,

Intervenors/Defendants/Appellants/Petitioners.

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, by its President M. Charles Howard, MICHAEL LANGYEL, DONALD LUCIER, TRACY ADAMS, MILWAUKEE PUBLIC SCHOOLS ADMINISTRATORS AND SUPERVISORS COUNCIL, INC., by its Executive Director, Carl A. Gobel, PEOPLE FOR THE AMERICAN WAY, by its Executive Vice President and Legal Director, Elliot Mincberg, JOHN DREW, SUSAN ENDRESS, RICHARD RILEY, JEANETTE ROBERTSON, VINCENT KNOX, BERTHA ZAMUDIO, JAMES JOHNSON, ROBERT ULLMAN and SALLY F. MILLS,

Plaintiffs/Respondents,

v.

JOHN T. BENSON,
Superintendent of Public Instruction,
DEPARTMENT OF PUBLIC INSTRUCTION
and JAMES E. DOYLE,

Defendants/Appellants/Petitioners,

and

MARQUELLE MILLER, CYNTHIA MILLER, ANGELA GRAY, ZACHARY GRAY, SHON RICHARDSON, GEORGE RICHARDSON, LATRISHA HENRY, FAYE HENRY, REIGNE BARRETT, VALERIE BARRETT, CANDICE WILLIAMS, SENTON WILLIAMS, CLINTRAI GILES, SHARON GILES,

Intervenors/Defendants/Appellants,

PARENTS FOR SCHOOL CHOICE, PILAR GONZALEZ, DINAH COOLEY, JULIE VOGEL, KATE HELSPER, BLONG YANG, GAIL CROCKETT, YOLANDA LASSITER, and JEANINE KNOX,

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Plaintiffs/Respondents,

v.

JOHN T. BENSON,
Superintendent of Public Instruction of Wisconsin,
in his official capacity,

Defendant/Appellant.

REMITTITUR Date: September 03, 1998

This cause was a review of the order/decision of the court of appeals.

IT IS ORDERED AND ADJUDGED by this court in an opinion filed on June 10, 1998, that:

The decision of the court of appeals is reversed, and the cause is remanded to the circuit court for further proceedings consistent with this opinion.

Hon. Donald W. Steinmetz wrote decision/opinion, 070 pages.

Hon. Shirley S. Abrahamson joined dissenting opinion.

Hon William A. Bablitch wrote dissenting opinion, 001 pages.

Hon. Ann Walsh Bradley took no part.

The appeal record is hereby returned to the Clerk of Circuit Court for Dane County.

I certify that the above is a correct transcript of the original order and judgment of the court in the above cause.

MARILYN L. GRAVES
Clerk of Supreme Court

APPENDIX E

IN THE SUPREME COURT OF THE UNITED STATES

No. 98-376

WARNER JACKSON, *et al.*,
Petitioners,

v.

JOHN T. BENSON, *et al.*,
Respondents.

AFFIDAVIT OF JEFFREY J. KASSEL

Jeffrey J. Kassell declares as follows pursuant to 28 U.S.C. § 1746:

1. I am an attorney admitted to practice in the State of Wisconsin and in the Supreme Court of the United States. I am one of the attorneys representing the petitioners in this case.

2. On June 26, 1998, respondents Parents for School Choice, et al., filed a "Motion for Clarification" in the Wisconsin Supreme Court. The motion related solely to the eligibility of certain children to participate in the Amended Milwaukee Parental Choice Program as a result of the Wisconsin Supreme Court's June 10, 1998 decision upholding the Program and dissolving the injunction that barred implementation of the Program. The "Motion for Clarification" did not address the merits of the Wisconsin Supreme Court's decision but sought only a clarification with regard to the implementation of the court's order that the injunction be dissolved.

3. On August 27, 1998, respondents Parents for School Choice, et al., filed a document entitled "Withdrawal of Motion for Clarification" in the Wisconsin Supreme Court.

4. At approximately 2:30 p.m. on the afternoon of August 27, 1998, I telephoned the office of the Clerk of the Wisconsin Supreme Court. I spoke with a deputy clerk of court who confirmed that the "Withdrawal of Motion for Clarification" had been filed. I asked the deputy clerk whether the court would issue an order pertaining to the withdrawal of the motion. She told me that the court would not issue any order but that it would simply return the record to the trial court.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on September 4, 1998.

/s/ Jeffrey J. Kassel
JEFFREY J. KASSEL

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